

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman., Department Advocate's Office, January 23, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-32011, against Sgt. Carlos Herrera, Tax Registry No. 952847. The case was conferenced on January 16, 2025, before Assistant Deputy Commissioner of Trials Facio-Lince, who approved the negotiated penalty of a Schedule B Command Discipline with a forfeiture of ten (10) vacation days for DADS No. 2024-32011, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030310BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, HERRERA	FIRST CARLOS	M.I.	COMMAND 641
SHIELD NO. 4176	TAX REGISTRY NO. 952847	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Carlos HERRERA, on or about June 7, 2023, at approximately 0045, while assigned to 043 PCT and on duty, in the vicinity of Fteley Avenue between Gleason Avenue and Watson Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Herrera interfered with § 87(2)(b) use of a recording device without police necessity.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Sergeant Carlos HERRERA, on or about June 7, 2023, at approximately 0045, while assigned to 043 PCT and on duty, in the vicinity of Fteley Avenue between Gleason Avenue and Watson Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that Sergeant Herrera threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit that amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER4/15/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER6/3/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-030310
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, HERRERA	FIRST CARLOS	M.I.	COMMAND 641
SHIELD NO. 4176	TAX REGISTRY NO. 952847	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Sergeant Carlos HERRERA, on or about June 7, 2023, at approximately 0045, while assigned to 043 PCT and on duty, in the vicinity of Fteley Avenue between Gleason Avenue and Watson Avenue, Bronx County, was discourteous, in that Sergeant Herrera stated to § 87(2)(b) that § 87(2)(b) was "being like an asshole" and was doing "extra shit", without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

9/15/25
DATE

POLICE COMMISSIONER'S APPROVAL

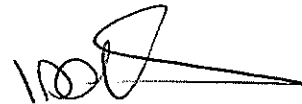
- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

6/3/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, April 15, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-32011 (PODS Case No. C-030310; CCRB Case No. 202305267) against Sergeant Carlos Herrera, Tax No. 952847, with the recommendation that the Charges and Specifications against Sergeant Herrera be dismissed and that Sergeant Herrera receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

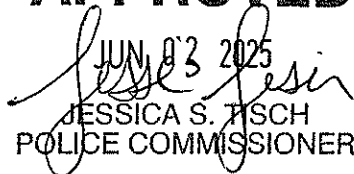


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED



JUN 8 2025
JESSICA S. TISCH
POLICE COMMISSIONER